

**BYE-LAW
OF
NILACHALA SARASWATA SANGHA
PURI**

[Regn. No. 7391/390 of 1973-74]



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Puri
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JAYAGURU

1. Name of the Society - **Nilachala Saraswata Sangha**
(Which will be here in after known as 'Kendra Sangha')
2. Location of the Registered Office of the Secretary. - **Sri Shri Nigamananda**
Smruti Mandir
At : Swargadwar, Puri.

Special Features : PREAMBLE

Paramahansa Paribrajakacharya Srimat Swami Nigamananda Saraswati Deb (hereinafter mentioned as 'Shri Shri Thakur') felt a divine urge and himself established this '**Nilachala Saraswata Sangha**' at Puri on the 24th August 1934 on his 'Holy Birthday' (Srabana Purnima) and blessed this institution by becoming its Founder President. Since then as the trustworthy retainer, faithful propounder and honest propagator of the philosophy and outlook underlying the ideologies of Shri Shri Thakur, the Kendra Sangha has been functioning and shall function as such in Orissa and beyond its limits if circumstances so necessitate, as the supreme organisation and the nerve-centre of all its branches (Sakha Sanghas) along with all attached family organisations (Paribarik Sanghas) who have accepted with all its

implications the cardinal principles and special features of the 'Kendra Sangha' by recognising 'GURU' and 'ISTA' as one and the same supreme being and entertaining an unshakable faith in the existence of Shri Shri Gurudev through His Name (Jayaguru Sidha Mantra), Rupa (Internal Existence), Leela (discourse on his life and teachings amongst the devotees) and Bigraha (worship of his image in the Asana Mandir).

3. Objects of the Society :

The aims and objects of the Sangha shall be :

To materialise the ideologies of Shri Shri Thakur i.e. 'Sanatana Dharma Prachar', 'Satsikshya Bistar', and 'Siva jnane jeeva Seva' through 'Adarsha Grihasth Jeevan Gathan', 'Sangha Saktira Pratistha' and 'Bhaba Binimay' amongst the household devotees of Shri Shri Thakur in the manner prescribed by him personally at Nilachala Kutir, Puri, the last but not the least memorable and meaningful resort of this great sage of India.

6. We, the undersigned, are desirous of forming a Society, (Sangha) Nilachala Saraswata Sangha in pursuance of this Memorandum of Association and we believe that the facts stated above are true to the best of our knowledge.

Sl. No.	Name	Address	Signature
1.	Chaitanya Ch.Das	At/P.O.-Shekh Bazar P.O.-Cuttack-1, Dist. Cuttack	Sd./-

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- | | | | |
|----|---------------------|---|-------|
| 2. | Durga Ch. Mohanty | At/P.O-Birtung
Dist-Puri | Sd./- |
| 3. | Gunanidhi Patnaik | At-Asarpipur
P.P. Kakatpur, Dist, Puri | Sd./- |
| 4. | Baman Ch. Parida | At/P.O-Kendupatna
Dist. Cuttack | Sd./- |
| 5. | Jagannath Samantara | At.P.O-Ameipal
Dist-Cuttack | Sd/- |
| 6. | Raghunath Pati | At/P.O-New Capital
Dist-Puri | Sd/- |
| 7. | Damodar Das | At/P.O-Erbang, Dist. Puri
At Present-Swargadwar,
Dist. Puri | Sd./ |
| 8. | Satyapriya Mohanty | Kancha Lane,
Bhubaneswar | Sd./ |
| 9. | Padmanabha Samal | Vill-Jobra, Dist-Cuttack
Rtd. Exe. Engineer | Sd./ |

Name, Signature and Addresses of witnesses-

1. Sd./- Pranakrushna Rath
Board of Revenue, Orissa,
Cuttack-2
2. Sd./-Braja Kishore Prusty,
Board of Revenue, Orissa,
Cuttack-2

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Attested the above Signatures-

Sd./- P. Panda, 23.10.73

Asst. Financial Adviser,
Board of Revenue, Orissa, Cuttack-2

Serial No. : 1
No. in the Register : 7391 / 390 of 1973-74
Name of the Society : Nilachala Saraswata Sangha
Nature of document : Memorandum
Date of Registration : 24-11-73

Sd/-P.C.Patnaik

For Registrar of Societies, Orissa.

Certified to be a True Copy

Sd./-

For Registrar of Societies, Orissa

3. OBJECTS OF THE SOCIETY :

Bye-law Of Nilachala Saraswata Sangha

Aims and objects of the Association (Sangha)

Further Rules shall be :

1. To perpetuate the sacred memory of Shri Shri Thakur by suitably maintaining and regularly sustaining the 'Asana' and Bigraha' of Shri Shri Thakur at Nilachala Kutir, Swargdwar, Puri.
2. To conduct the day-to-day seva pujas of Shri Shri Thakur at Nilachala Kutir, Puri which will include all 'Nitya' and 'Naimittika' pujas following the established practices and conventions through some rightenus house-hold devotee preferably a Brahmin devotee or in case of non availability of such a Brahmin or non-Brahmin devotee to run it, through a righteous Brahmin having full faith in Shri Shri Thakur.
3. To take all possible measures for the proper preservation of all articles of Nilachala Kutir which were used by Shri Shri Thakur personally and are associated with the sacred memory of Shri Shri Thakur.
4. To take necessary steps for the proper maintenance and necessary improvements of the Nilachala Kutir including all other movable and immovable properties and arrange payment of land revenue and other taxes etc-for these from the Sangha funds and special

donations, if any received for this purpose from the devotees, as the Sangha has been doing since the date from which management of Nilachala Kutir was so kindly entrusted to it and published as a news item in 'Aryadarpana' of Bhadraba, 1369 Sal (1962 AD) by Smt. Narayani Devi in the year 1962.

5. To suitably maintain and regularly sustain, the 'Asan' of Shri Shri Thakur in the Nigamananda Smruti Mandir, Swargadwar, Puri as the 'Asan' of the Kendra Sangha by conductiong day-to-day seva pujas of all kinds (Nitya, Naimittika and Kamyā) and to make necessary arrangements for the proper upkeep and maintenance of the articles associated with his memory which are existing at present in the Nigamananda Smruti Mandir.

In this connection, the hand-rikshaw which was used by Shri Shri Thakur at Puri, deserves special attention. Due attention shall also be paid for preservation of other articles which will be collected and preserved in the Smruti Mandir by the Kendra Sangha in future. The Kendra Sangha shall also take necessary measures for the proper maintenance and necessary improvements of the Smruti Mandir including payment of land revenue and all other taxes etc. in time from the funds of the Kendra Sangha and donations which will be received for this purpose.

6. Suitably maintain and regularly sustain the 'Bhakta Sammilani Asan' and 'Sikhya Kendra Asan' at Biratung, P.S, Gop, Dist, Puri by conductiong the day-to-day seva puja of all kinds Nitya, Naimittika, and kamyā and to run the 'Sikshya Kendra' (Training Centre) there for imparting training both theoritical and practical for the intellectual and spiritual attainments of different

categories of pupils (Bhaktas, Sevaks and students) on the lines enunciated by Shri Shri Thakur.

7. To recognise the sanctity of Saraswat Math and Gurudham at Kutabpur not only by offering Pranamis on specified occasions but also including the spirit of services to be rendered to these institutions with a view to materialise the ideologies of Shri Shri Thakur.
8. To take necessary steps for the proper upkeep and maintenance of the articles used by Shri Shri Thakur and associated with his memory which are still preserved at Biratung, P.S. Gop, Dist. Puri.
9. To take necessary measures for providing accommodation both for the 'trainees', 'teachers', 'Bhaktas' and 'Sevaks' for the smooth running of the Training Centres. Suitable steps should also be taken for the proper maintenance and necessary improvement of the 'Sikshya Kendra' and 'Asana Mandir' at Biratung including payment of land revenue and other taxes etc. in time.
10. To open training-centres for the culture of different branches of fine arts like painting, music, dancing, singing, asana sajja (decoration), stitching etc. at suitable places with the avowed aim of utilising this training and knowledge for the seva pujas and ceremonial functions of Shri Shri Thakur. The knowledge thus obtained shall not be used for any other public purpose.
11. To sponsor the establishment of Nilachala Saraswata Mahila Sangha under the auspices of the Kendra Sangha at Nilachala Kutir, Puri for the spiritual intellectual development of the female devotees of Shri Shri Thakur in compliance with the last 'wish and Testament' of Shri

Shri Thakur so kindly communicated to the Kendra Sangha and published in Aryadarpana of Bhadra Issue, 1369 Sal by Smt. Narayani Devi.

12. To accord permission for the establishment of Sakha Sanghas (Branches of Nilachala Saraswata Sangha) and 'Asana Mandir' at different places for propagation, discussion and implementation of Shri Shri Thakur's Ideas, ideologies and teaching. The Office-bearers of these Sakha Sanghas will function as the custodians of the said 'Asana Mandir' and 'Sakha Sangha' on behalf of the Kendra Sangha.

To accord affiliation to such 'Asana Mandir' after due enquiry in the prescribed manner of such prayers by offering a token memory (Smruit Chihna) of Shri Shri Thakur and issuing a letter of authority to establish the Asana Mandir and Sakha Sanghas on performance of due ceremonies. But no Sakha Sangha or Asana Mandir will qualify to be affiliated unless at least three of the recognised devotees of Shri Shri Thakur are there in the habit of offering daily Seva and Pujas to Shri Shri Thakur by establishing Paribarik Asanas at their respective residences.

To ensure that all sorts of Seva and Pujas including Sangha Adhibesans should be conducted through the introduction of 'Pali' system both at the Kendra Sangha and the 'Sakha' level.

To organise 'Mahila Sanghas' in different 'Sakha-Sanghas' for the female devotees which will function as a part of the concerned Sakha Sangha and will be affiliated to the Kendra Sangha.

13. To conduct and guide the functioning of different 'Zilla Sanghas' and other occassional functions and

ceremonies organised by different Sakha Sanghas from time to time.

14. To make arrangements for the annual Session of the 'Utkal Pradeshik Bhakta Sammilani' and for holding the sessions of 'Sarbabhoum Bhakta Sammilani' when such a decision is taken by the Governing body of the kendra Sangha.
15. To celebrate the sacred 'Janmostsava' (Birthday ceremony) of Shri Shri Thakur at Nilachala Kutir, Puri annually on each fullmoon day (Purnima) of the Oriya month Shrabana (August), Popularly known as Gahma Purnima, as has been the usual practice so long and other special functions and ceremonies with due rituals and sanctity. The anniversary of the kendra Sangha shall also be celebrated on the same 'Janmotsava Day'.

Each and every affiliated Sakha Sangha including the Mahila Sanghas shall submit an Annual Report of their activities and accounts to the Governing Body on or before the 'Janmostsav Day' on receipt of which the Governing Body will arrange for the renewal of recognition of the respective Sakha Sanghas and Mahila Sanghas.

The Secretary of the Governing Body or any body on his behalf shall also arrange to place the Annual Report of the Kendra Sangha on its activities and accounts for discussion and approval before the General Body at the time of its annual session for information.

16. To prepare and publish books and journals etc. dealing with the concepts and philosophy of Shri Shri Thakur (a) translation of his own writings and other literatures on his life and philosophy to Oriya, (b) by producing other corroborating literatures and (c) by encouraging research in these matters.

17. To make necessary arrangements for providing all possible facilities to the Parichalak of the Sangha with a view to assist him in his pursuit of research and production of literatures Shri Shri Thakur's teachings and philosophy which may include besides other facilities, maintenance of a library, provision of accommodation and services of suitable assistants and attendants for the purpose. Special allotment of funds should also be made for meeting the personal expenditure of the Parichalak in order to maintain his efficiency for the work including discretionary grant to be placed at his disposal, which will not be subject to any audit.
18. To perpetuate the sacred memory of Shri Shri Thakur's first visit to puri as Paribrajaka and his sojourn at Room Nos. 19 and 20 in Bagala Dharmasala, by opening a suitable Reading Room therein for which the authorities of the Lodging House Fund Committee, Puri have been pleased to accord necessary permission on rental basis.

In this connection, it may be further noted that the Sarbabhoum Bhakta Sammilani being convened by Shri Shri Thakur himself on behalf of the Nilachal Saraswata Sangha was also held in the said Dharmasala at his instance for the first time in Orissa in the year 1936.

To frame rules and make necessary provisions in the Annual Budget of the Kendra Sangha for the proper maintenance of the Reading Room in Bagala Dharmasala, which should contain literatures on Shri Shri Thakur's life, teachings and philosophy, both in books and journals alongwith other corroborating scriptures of Sanatan Dharma.

To undertake the construction of Bhakta Nivas, Mahila Nivas, Chhatrabas, Gosala, Vidyapitha, Atithi Bhavan,

Parichalak Nivas, Chikitsa Bhavan etc. at suitable places if and when funds so permit.

20. To undertake any other activity, which will be required for fulfillment of the purpose of Shri Shri Thakur in establishing the Nilachala Saraswat Sangha.

(B) Memberships:

The Kendra Sangha shall have three categories of Members:- (i) Probationary members (ii) Regular members and (iii) Associate members.

(a) Probationary members :

The minimum qualification for being enrolled as a 'probationary member' of the Kendra Sangha are :

- (i) One must have possessed a good moral character and must have accepted Shri Shri Thakur as the sole and supreme 'Guru' and 'Ista'
- (ii) Must be observing the 'Niyam Panchak' in the manner prescribed by the Governing Body.
- (iii) Should abide by the rules and regulations as detailed in 'Sangha Neeti' promulgated by the Kendra Sangha from time to time.
- (iv) Should have resolved to dedicate himself as a Sevak of Shri Shri Thakur, His devotees and the Sangha.
- (v) Should be leading a household life and should have the aim of developing it into 'Adarsha Grihastha Jeevan' as enunciated by Shri Shri Thakur.

On being enrolled as probationary member on the basis of the above qualifications, he or she shall be issued an 'Anumati Patra' signed and issued by the Kendra Sangha on Performance of due ceremonies.

On being a member, his or her conduct must strictly confirm to the directions given in the 'Anumati Patra' for a 'Sangha Sevi' and the member should recognise the sancity of Saraswata Matha, Guru Dham and owe allegiance to 'Nilachala Kutir' and 'Smruti Mandir' at Puri and 'Sikshya Kendra' at Biratung, Dist: Puri. A probationry member shall have powers to vote in all matters relating tot the concerned Sakha Sangha and in the General Body meeting of the Kendra Sangha, but he is not eligible to be the President or Secretary of the Sakha Sangha.

Under special circumstances, such members can also function as President or Secretary of the Sakha Sangha with approval of the Parichalak, as special cases, which should not be cited as precedent cases.

(b) Regular members :

- (i) In order to be a regular member of the Kendra Sangha one must have continued as a probationary member of any Sakha Sangha including Mahila Sanghas holding valid 'Anumati Patra' at least for a period of one year.
- (ii) On recommendation of the Sakha, one must have undergone training for atleast one year under the guidance of the Kendra Sangha.
- (iii) On completion of the training period, he or she can be enrolled as a full-fledged member of the Kendra Sangha and shall be issued an Identity Card (Parichaya Patra) by the Kendra Sangha.
- (iv) On being enrolled as a member of the Kendra Sangha, he or she shall have to culture an aptitude for actively participating in all the activities undertaken by the Kendra Sangha in addition to his/her responsibilities already voluntarily shouldered by him/her as seva in the Sakha Sangha.

- (v) The Parichalak can suo motto enrol directly any devotee as a regular member of the Kendra Sangha and subsequently direct him to be member of any Sakha Sangha.

(c) Associate Members

Teh Parichalak, suo motto, or on the recommendation of any Sakha Sangha can enrol any person as Associate-member taking into consideration his or her active participation and sympathetic attitude towards implementation of any scheme undertaken by Kendra Sangha.

Such members will be entitled to attend all the functions of the Sakha Sanghas and those of the Kendra Sangha but will not be entitled to be elected as, or to elect any representative to any elected posts both of the Sakha and the Kendra Sangha.

(d) Cessation of Membership :

- (i) The membership of any member automatically ceases after death, non-renewal of the Annual Parichaya Patra (Identity Card) or Anumati Patra (Admit Card) as the case may be or absence in three consecutive weekly Sangha Pujas without permission of the President of the concerned Sakha Sangha.
- (ii) Membership of the Kendra Sangha automatically ceases with the cessation of membership in any Sakha Sangha if not otherwise directed by the Parichalak to continue as such.
- (iii) On receipt of a report either from the President of the Sakha Sangha or from any member of the Governing Body of the Kendra Sangha, membership of any member will cease on the following grounds :
 - (a) for the misdemeanours of the members.

- (b) for indulging in activities contrary to the ideologies of Shri Shri Thakur.
- (c) for violating the Rules and Regulations of the Sakha or the Kendra Sangha.
- (d) for lack of faith in the ideologies of Shri Shri Thakur subsequently and
- (e) for reasons of moral turpitude.

Person who ceases to be a member of the Kendra Sangha shall not be allowed to take part in any activity of the Kendra Sangha.

(c) Constitution of the Kendra Sangha :

The Kendra Sangha shall mainly consist of three organs :

- (i) a Governing Body
- (ii) an Advisory Board and
- (iii) a General Body

(i) The Governing Body:

(1) Constitution :

- (a) The Governing Body shall consist of 9 members who shall be elected in the combined meeting of the existing members of the Governing Body and the members of the Advisory Board to be convened by the Secretary of the Kendra Sangha for this purpose.
- (b) The Governing Body shall elect from amongst its members:
 - (i) a President (ii) a Vice-President (iii) a Parichalak (iv) A Secretary (v) an Assistant Secretary and (vi) a Treasurer.
- (c) The terms for the members of the Governing Body except the life members shall be 3 years from the date they assume office.

- (d) In case of any vacancy arising out of death, resignation or removal of any member of the Governing Body, it will be filled up by a person or persons elected in the manner prescribed in para (a) above.
- (e) The Governing Body shall meet atleast four times in a year to discuss about the management of the affairs of the Kendra Sangha at places to be decided by the President for the purpose. The quorum for a meeting of the Governing Body shall be 5 members.

At present the Governing Body consists of :

- | | | |
|----|---|-----------------------------|
| 1. | Shri Chaitanya Charan Das
Vill. Matia, P.S. Pattamundai
Dist. Cuttack (Life Member) | President |
| 2. | Shri Gunanidhi Patnaik
Asarapipur, Kakatpur
Puri (Life member) | Vice- President |
| 3. | Shri Durga Charan Mohanty
Vill. Biratung, P.S. Gop,
Dist. Puri (Life Member) | Secretary and
Parichalak |
| 4. | Shri Jagannath Samantray
Vill. Ameipal, P.O. Kujang,
Dist. Cuttack | Member |
| 5. | Shri Baman Charan Parida
Vill/P.O. Kendupatna,
Dist. Cuttack | Member |
| 6. | Shri Raghunath Pati
At. Tulsipur, Cuttack | Asst. Secy. |

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| 7. | Shri Damodar Dash
Vill- Erbang, P.O. Gop,
Dist. Puri, | Treasurer |
| 8. | Shri Satyapriya Mohanty
Kancha Lane, Bhubaneswar | Member |
| 9. | Shri Padmanabh Samal
Rtd. Executive Engineer,
Jobra, Cuttack | Member |

The present Governing Body shall continue to function as such for a period of three years from the date of registration of the Kendra Sangha. On the retirement or non-existence of any one or all the three life members mentioned above, the combined meeting of the Governing Body and the Advisory Board may fill up the vacancy thus created by unanimously selecting a person or persons as the case may be.

The members of the Governing Body shall behave themselves as humble servants of the Sangha which is considered as the very manifestation of Shri Shri Thakur (Sangha Sevi) and maintain uniformity in their conception, expression and action.

(2) Functions of the Governing Body :

- (i) The overall mangement of all the affairs of the Kendra Sangha shall be entrusted to the Governing Body which will take decisions on policy matters according to the lines indicated by Shri Shri Thakur and remain as the custodian of all the properties, movable and immovable, pertaining to Nilachala Kutir and Smruti Mandir at Puri and the Sikshya Kendra at Biratung, P.S-Gop, Dist- Puri

which will be recorded in the name of Shri Shri Thakur under the maarfatdarship of Kendra Sangha in all revenue municipal and other concerned records.

- (ii) The Governing Body shall have powers to frame rules and regulations for the proper management of Seva and Pujas of all types — Nitya, Naimittika and Kamyas in the Nilachala Kutir, Smruti Mandir at Swargadwar, Puri and the Sikshya Kendra at Biratung, PS. Gop, Dist. Puri along with all the branch institutions including the Mahila Sanghas run by or affiliated to the Kendra Sangha.
- (iii) It shall also frame rules and regulations for the proper functioning of the Sakha Sanghas including Mahila Sanghas, Sakha Asana Mandirs and Paribarik Asana Mandir.
- (iv) It shall frame rules and regulations for the conduct and daily duties of all types of Sevaks and the general conduct of the members of the Kendra and Sakha Sanghas by framing the 'Sangha Neeti' on the lines indicated by Shri Shri Thakur.
- (v) It shall give affiliation to different 'Sakha Sanghas' and 'Sakha Asanas' according to the lines indicated by Shri Shri Thakur for the formation of a Sakha Sangha and establishment of a Sakha Asana, including Paribarik Asana.
- (vi) It shall also frame rules for the proper management and functioning of different categories of training centres as mentioned in paragraph - 6 and 8.
- (vii) It shall frame rules for the observance of Pancha Yajna not only by the individual members (Sangha Sevis) and branch organisations, but also for the Kendra Sangha itself at suitable places.

- (viii) It shall appoint suitable sevaks for Nilachala Kutir and Smruti Mandir at Puri and Sikshya Kendra at Biratung, P.S Gop, Dist. Puri, if necessary on remuneration basis.
- (ix) It may appoint a paid Manager and other staff if required, for the proper maintenance of all accounts of the Kendra Sangha and for the proper management of all the properties of the Kendra Sangha under the guidance of the Governing Body.
- (x) It shall make suitable arrangements for proper celebration of 'Janmotsava' (Holy Birthday Ceremony) of Shri Shri Thakur on each Srabana Purnima day, popularly known as 'Gahma Purnima' or Jhulan Purnima day and other ceremonial functions as decided by the Kendra Sangha from time to time.
- (xi) It shall be competent for making arrangements for initiation (Name Grahona) of those desirable devotees who are desirous of being initiated with 'Jayaguru' *Sidhamantra* in the manner prescribed by the Kendra Sangha and also as laid down in 'Meru Tantra' through the process of *Ghata Sthapan*.
- (xii) It shall also frame rules for the proper celebration of the annual session of the 'Utkal Pradeshik Bhakta Sammilani' and shall look to its proper management on the lines surmonised by Shri Shri Thakur.
- (xiii) It shall have to pass an annual budget for the Kendra Sangha taking into consideration the anticipated income and expenditure for the year concerned. But before the buget for the year is finaily prepared for its consideration, the draft budget or any other draft resolution entailing financial implication should be referred to the Advisory Board for their considered views to be furnished to the

Governing Body within a reasonable period of time. The draft budget or the resolution as the case may be, would be placed before the Governing Body alongwith the views of the Advisory Board, if any, received in the meantime for the final consideration of the Governing Body.

- (xiv) It shall frame rules and regulations for the proper management and maintenance of all such properties as mentioned in Paragraph C (2) (i) above.
- (xv) The Governing Body, if it thinks proper can entrust the duties of two or more Office-bearers of the Kendra Sangha to one person.
- (xvi) It can form different committees / Sub-Committees consisting of suitable members of the Kendra Sangha for different purposes including the celebration of ceremonial functions.
- (xvii) As the guiding principles of the Kendra Sangha is to avoid all confrontations and dissensions amongst its members, all decisions taken by the Governing Body should normally be unanimous in all spiritual matters. Even then if in some matters, a division becomes unavoidable and if on such occasion the members are equally divided, the President of the Governing Body shall be competent to use his casting vote.
- (xviii) It can, as a temporary measure, arrange to take-over the seva and pujas of Shri Shri Thakuar in any Sakha Sangha and Asana Mandir if it is convinced that serious omissions and commissions have been made resulting in serious departure from the ideologies of Shri Shri Thakur. Any expenditure incurred in this connection by the Kendra Sangha out of the sinking fund shall be reimbursed by the Sakha Sangha subsequently.

- (xix) It can undertake any other activities, which will be felt necessary and helpful for fulfillment of the purpose of Shri Shri Thakur in establishing this Nilachala Saraswat Sangha by adopting a unanimous resolution in the Governing Body.

(3) Duties of the President of the Governing Body :

In addition to different functions of the President mentioned in different paragraphs of the Articles, his further functions shall be as under :

- (a) The President shall ordinarily preside over all the meeting of the Governing Body and the combined meetings of the Governing Body and Advisory Board.
- (b) The President shall have powers of general superintendence over the offices of the Kendra Sangha and their activities.
- (c) The President shall have powers to inspect as far as practicable the daily seva pujas of Shri Shri Thakur at Puri for the smooth functioning of the affairs of the Kendra Sangha.

(4) Duties of the Vice-President :

The Vice-President shall preside over all the meeting of the Governing Body and the combined meeting of the Governing Body and Advisory Board during the absence of the President.

(5) Duties of the Secretary :

In addition to various functions of the Secretary mentioned in different paragraphs of the Article, the further functions of the Secretary shall be as under :

- (a) The Secretary shall prepare agenda for the meeting of the Governing Body and the General Body and issue

notices for convening the meetings in consultation with the President of the Governing Body.

- (b) The Secretary shall maintain all the records, the accounts and documents of the Kendra Sangha.
- (c) The secretary shall arrange to send copies of all the resolutions and proceedings of all the meetings of the Governing Body and those of the General Body to all the concerned members.
- (d) The Secretary shall ensure implementation of all the decisions taken by the Governing Body and the General Body.
- (e) The Secretary shall arrange for the preparation of the Draft Annual Budget of the Kendra Sangha for the consideration of the Governing Body.
- (f) The Secretary shall arrange to prepare an Annual Report of the activities of the Kendra sangha and other organisations run/controlled by it.

(6) Duties of the Assistant Secretary :

The Assistant Secretary shall assist the Secretary in discharging his duties as enumerated above.

(7) Duties of the Treasurer :

In addition to various functions of the Treasurer mentioned in different paragraphs of the Articles, the further functions of the Treasurer shall be as under :

(a) The Treasurer shall be in charge of the funds of Kendra Sangha and maintain proper accounts of the Sangha funds both cash and bank accounts as regards all receipts and disbursements.

(b) The Treasurer shall have powers to disburse any amount from the funds of Kendra Sangha only on the written

orders of the President for execution of any scheme approved by the Governing Body.

(8) Duties of the Parichalak :

In addition to the various functions of the Parichalak mentioned in different paragraphs in this Article, further functions of the Parichalak shall be as under :

- (i) The Parichalak of the Kendra Sangha shall function as the Chief Organiser of the Kendra Sangha and its different branches, including Mahila Sanghas and Sikshya Kendras.
- (ii) The Prichalak shall have power to inspect and supervise all the branches affiliated to the Kendra Sangha and take disciplinary measures against any Sakha Sanghas including Mahila Sanghas or any individual member in the manner prescribed by the Governing Body.
- (iii) The Parichalak shall arrange to distribute the annual 'Parichaya Patra' (Identity Cards) and 'Anumati Patra' to all the members of the Kendra Sangha including Mahila Sanghas at the appropriate time in the conventional manner.
- (iv) The Parichalak shall impart 'Satsikshya' to the members of the Kendra and the Sakha Sanghas including Mahila Sanghas both in theory and practice and shall address the members of the Sangha in congregation for 'Jnanalochana' and 'Bhava Binimaya'.
- (v) The Parichalak is competent to accord permission to start a "Patha Chakra" at any place after due enquiry in the prescribed manner.
- (vi) He shall also discharge any other function as would be entrusted to him by the Governing Body from time to time.

D. (a) Constitution of the Advisory Board :

The Advisory Board of the Kendra Sangha shall be constituted by taking one representative from each of the branch organisation (Sakha Sanghas) who shall be elected by the Sakha Sanghas in the manner prescribed for the election of the Office bearers of the concerned Sakha Sangha.

The Advisory Board shall have (i) a President and (ii) a Secretary who shall be elected from amongst its members.

The term of the Advisory Board shall be for three years from the date of function as such.

(b) Duties of the Advisory Board :

- (i) The Board shall meet at least four times in a year at the suitable places to be decided by the President of the Board in consultation with the President of the Governing Body to discuss various affairs of the Kendra Sangha with particular reference to the implementation of the decision of the Governing Body in all matters and shall advise the Governing Body accordingly. But if any reference is made by the Governing Body in accordance with the provisions of Para (C) (2) (xiii), the President shall take immediate steps for convening a meeting of the Advisory Board for the consideration of the same along with other items, if any, in the agenda and submit their considered views to the Governing Body at their earliest possible opportunity.
- (ii) The meetings of the Advisory Board shall be convened by the secretary of the Board and agenda of the meeting should be framed in consultation with the President of the Board.
- (iii) The Advisory Board may constitute committees, sub-committees to look into the specific affairs of the Kendra Sangha.

- (iv) The Advisory Board shall arrange to submit the reports of the Committee/Sub-Committees and all the proceedings of the meetings of the Board to the Governing Body.

(c) Duties of the President of the Advisory Board :

All meetings of the Board shall be presided over by the President of the Board, but in a combined meeting of the Governing Body and the Advisory Board, the President of the Governing Body will preside over the same.

(d) Duties of the Secretary of the Advisory Board :

- (i) The Secretary of the Advisory Board shall convene the meeting of the Advisory Board and frame agenda for the meetings in consultation with the President of the Board.
- (ii) He shall arrange to submit the proceedings of all meetings of the Board to the Governing Body.
- (iii) He shall also look to the proper implementation of the decisions of the Advisory Board.

(E) [a] General Body :

All regular and associate members of the Kendra Sangha and its Sakha Sangha including Mahila Sanghas holding 'Parichaya Patra' issued by the Kendra Sangha and valid for the year will constitute the General Body of the Kendra Sangha.

[b] Duties and Functions of the General Body :

The General Body shall meet at least once in a year at the time of Utkal Pradeshik Bhakta Sammilani under the Presidentship of the Governing Body of the Kendra Sangha.

The Annual Report about the activities of the Kendra Sangha shall be read out in the General Body for information of all members.

Any member of the General Body is competent to send any resolution relating to the affairs of the Kendra Sangha to President of the Governing Body for consideration of the General Body, one month ahead of the session of the General Body. The President of the Governing Body on receipt of such resolutions shall refer these to a Subject committee, to be formed by the Governing Body taking any five members from the General Body. The 'Subject Committee' in its turn will recommend to the President of the Governing Body at least one week before the session of the General Body only those resolution for consideration of the General Body which are vital to the interests of the Kendra Sangha after proper scrutiny. Such resolution will form a part of the agenda of the General Body meeting of the Kendra Sangha with permission of the Parichalak.

F. [A] Funds of the Kendra Sangha :

The funds of the Kendra Sangha shall comprise the following :

- (i) Monthly subscriptions and other subscriptions of special nature realised from its members.
- (ii) Annual 'Pranamis' of all kinds of all sakha sanghas including Mahila Sanghas.
- (iii) Special Pranamis of all Sakha Sanghas for opening a Sinking fund in the name of the respective Sakha Sanghas under the control of Kendra Sangha
- (iv) Donations or pranamis of various kinds from devotees.
- (v) Grants from Government, Semi-Government and non-official bodies
- (vi) Sale Proceeds of the books / journals etc. published by the Kendra Sangha. Any amount received from this head should be shown in separate account and the funds so collected would only be spent in "Satsikshya Bistar" in

consultaion with the Parichalak. Necessary allotments from this head should also be made for meeting personal expenditure of the Parichalak as mentioned in Paras 16 and 17 above. (of the Aims and Objects of the Sangha)

- (vii) Donations or Pranamis from devotees for specific purposes.
- (viii) Income from all immovable properties of the Kendra sangha.
- (ix) Miscellaneous income, if any.

[b] Maintenance of the Funds :

The funds so collected will be kept either in the Post Office Savings Bank or in any nationalised Commercial Bank in Current, Fixed or Savings Bank Accounts or in both the Banks and Post office in the name of Nilachala Saraswata Sangha, to be operated upon jointly by the Secretary and the Treasurer of the Kendra Sangha.

[c] Utilisation of the Funds :

- (i) The funds of the Kendra Sangha shall be utilised as per the decisions of the Governing Body.
- (ii) The funds shall only be spent for the management of the Kendra Sangha, Nilachala Kutir, Smruti Mandir at Puri, the Sikshya Kendra at Biratung, different Sakha Sanghas affilited to the Kendra Sangha or any other institutions run or sponsored by the Kendra Sangha.
- (iii) Necessary expenditures to be incurred for the performance of 'pancha yagna' of which 'Atithi Satkar' (entertainment of guests) will be performed mainly at Sikshya Kendra.
- (iv) Any funds raised or donations received for any specific purpose shall be spent and utilised for that particular purpose only.

- (v) The Governing Body can sanction any amount adopting due procedures as donations to the Saraswata Matha and the Guru Dhama for specific purpose.
- (vi) The Secretary or the Assistant Secretary shall sue and be sued on behalf of the Kendra Sangha and any one of them will represent the Kendra Sangha in the offices of the Government. Local bodies and other authorities can receive donations and grant on behalf of the Kendra Sangha with prior approval of the Governing Body.

G. Audit :

The Accounts of the Kendra Sangha shall be audited every year by appointing a qualified Auditor by the Governing Body and the Audit Report shall be placed first before the Governing Body and then in the combined meeting of the Governing Body and the Advisory Board for their approval only after which the same will be placed before the General Body of the Kendra Sangha by the Secretary.

H. Power To Amend :

Whenever any difficulty arises in giving effect to the provision of this Bye-law of whenever, it is felt that due to the absence of a particular provision in the Bye-Law something essential and in confirmity with the ideology of Shri Shri Thakur can not be done, the combined meeting of the Governing Body and the Advisory Board can change, amend, substitute or delete any portion of the Bye-law by passing a resolution for the purpose of achieving the aims and objects of the Sangha. In case of difficulty for and member representative from any Sakha Sangha to attend this meeting, the concerned Sakha Sangha can send any other suitable member for this purpose as a substitute. If any provision in

the Bye-law of any Sakha Sangha comes into conflict with any provision of this Bye-law of the Kendra Sangha, the former shall be deemed to have been superseded.

I. Dissolution :

Whenever it is observed that the Kendra Sangha with its Governing Body and Advisory Borad is not functioning in its right earnest towards the fullfilment of the aims and objects of the Kendra Sangha, the same will be dissolved and upon dissolution, the properties that may remain after satisfying all debts and liabilities will vest in any registered Sakha Sangha of the Kendra Sangha which will undertake to fullfil the aims and objects laid down in article 'A' and the Memorandum.

Certified that this is a correct and true copy of the rules and regulations of the Nilachala Saraswata Sangha, Puri.

Sd./-Chaitanya Ch. Das	: President
Sd./-Durga Charan Mohanty	: Secretary and Parichalak
Sd./-Gunanidhi Patnaik	: Vice-President
Serial No.	: 1
No. in the Register	: 7391 / 390 of 1973-74
Name of the Society	: Nilachala Saraswata Sangha
Nature of document	: Memorandum
Date of Registration	: 24-11-73

Sd./-P.C. Patnaik

For Registrar of Societies, Orissa.

CERTIFIED TO BE A TRUE COPY

Sd./-

For REGISTRAR OF SOCIETIES, ORISSA

JAYAGURU

NILACHALA SARASWATA SANGHA, PURI

(FOUNDED BY NIGAMANANDA SARASWATI
DEB IN 1934)

President :

Sri Chaitany Charan Das At.P.O. Swargdwar, Puri

Sectetary :

Sri Durga Charan Mohanty At/P.O. Swargdwar, Puri

Dated.....

Copy of the Resolutions No.1 dated 21-10-1975

Following two sub-sections may be added after the sub-section No. VI of the sub-chapter "Functions of the Governing Body" occuring in, Chapter "C" of the Bye-law.

VI (A) The Governing Body shall have power to acquire, own and dispose off the properties in the name of Nilachala Saraswata Sangha and all such properties along with the existing properties shall vest in the Governing Body.

VI (B) The acquisition by purchase and disposal of properties by sale, if effected by documents shall be executed by the President, Secretary or Parichalak of the Sangha as resolved in the meeting of the Governing Body and these should be deemed to be part of the Bye-law from the date, the existing Bye-law came into force.

Copy of the Resolution No-2 dated 21-10-75

"Following 2 Sections may be added after the section 6 of sub-Chapter 5 and sub section 6 may be added after sub-section 1 of sub-chapter No-5 occuring in the chapter "C" of the Bye-law.

A Chapter 'C' Sub-Chapter-5

“Sub Clause ‘G’-Any complaint written or un written by or against any of the regular members of any recognised Sangha, pertaining to any action of activity of the member concerned may be referred to the Governing Body for their consideration and necessary action by the Secretary of the Kendra Sangha, if he so desired in the larger interest of the Sangha and that in consultation with the Parichalak.

B Chapter 'C' Sub-chapter-5

Clause-VII-Parichalak is competent to discharge any of his duties entrusted to him either under the Bye-law or by any Resolution of the Governing Body, through and Authorise agent nominated by him.

Clause-VIII

In the absence of any provision in the Bye-law, relating to any matter or matters the decision taken by Parichalak, Shri Durga Charan Mohanty in such matters shall be final and the said decision shall be placed before the Governing Body for information in the next meeting held immediately after the said decision.

The above two resolutions have been passed unanimously in meeting of the General Body of the Nilachala Saraswata Sangha, Puri, vide Regn. No. 7391/390 of 1973-74 held in the Office of the Sangha on 21-10-1975, in the afternoon.

Signature of the 3 members of the
Executive Body Attesting the copy
of the Resolution.

Sd./-Chitanya Charan Das
President

Sd./-Durga Charan Mohanty
Secretary

Sd./-Raghunath Pati
Asst. Secretry